

6. 9:00 AM CASE NUMBER: C24-01405
CASE NAME: ESTELA FLORES VARGAS VS. GENERAL MOTORS LLC
*HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES
FILED BY: FLORES VARGAS, ESTELA
TENTATIVE RULING:

Plaintiffs Estela Flores Vargas and Silvino M Ramirez ("Plaintiffs") filed a Motion for Attorney's Fees, Costs and Expenses on December 10, 2025 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$34,820.64, inclusive of \$33,162.25 in attorneys' fees and \$1,658.39 in costs as against defendant General Motors LLC ("Defendant"). The Motion for Fees and Costs was set for hearing on April 27, 2026. The motion is opposed.

Background

This matter was resolved by way of a settlement agreement between the Plaintiff and Defendant (the "Settlement Agreement"). See Declaration of Arbore Kornely filed December 10, 2025 ("Kornely Decl.") ¶¶30-32 and **Exhibit 2** thereto. Among the terms was a settlement payment of \$200,000 payable to Plaintiffs by Defendant. Settlement Agreement, ¶13, Kornely Decl., **Exhibit 2**. The agreement also includes a provision that Plaintiffs are the prevailing parties and provides for recovery of attorneys' fees "reasonably incurred" by Plaintiffs in connection with the commencement and prosecution of the action:

- (ii) Defendant shall pay Plaintiff attorney's fees, costs, and expenses in an amount determined by the Court, by way of a single noticed motion, to have been reasonably incurred by Plaintiffs in the commencement and prosecution of this action, unless the parties agree on the amount of fees, costs and expenses to be paid absent such a motion. The parties agree that Plaintiffs are the prevailing party for purposes of the motion. Defendant reserves the right to oppose any fee motion to be filed in this case.

Id.

The Motion for Fees and Costs is supported by the declaration of Plaintiffs' attorney summarizing the conduct of the litigation and outcome achieved. See Kornely Decl., ¶13 *et seq.* The declaration describes the billing attorneys' and paralegals' background and professional experience. See Kornely Decl., ¶133 *et seq.* The declaration further describes the firm's billing practices and proffers supporting billing records. *Id.* at ¶142 and **Exhibit 5** thereto.

The total "base" amount billed was \$20,441.50. *Id.* at ¶142. Plaintiffs seek a "lodestar multiplier" of 1.5 in light of the litigation, Defendant's conduct and the outcome achieved. See Memorandum of Points and Authorities (MPA), Motion for Fees and Costs, p.1 *et seq.* The motion seeks an additional \$2,500 for estimated further attorney's fees in connection with this motion. *Id.* at ¶147.

Plaintiffs' motion is further supported by a Request for Judicial Notice attaching several attorneys' fees award decisions in other matters involving Plaintiffs' law firm. Request for Judicial Notice filed December 10, 2025, Attachments 1 and 2 (**Exhibits 3 and 4** to Kornely Decl.); see also, Kornely Decl., ¶¶139-40. The Request for Judicial Notice is GRANTED.

Defendant filed an Opposition on April 13, 2026, along with a opposition declaration.

Plaintiffs filed a Rely on October 20, 2026, along with a supplemental Declaration of Arbre Kornely on the same date ("Supp. Kornely Decl."). That supplemental declaration includes a breakdown of the billings incurred in responding to the opposition. Supp. Kornely Decl., ¶16. Those fees total \$2,205. *Id.* \$76.50 in further expenses is reflected as well. *Id.* at ¶17.

Analysis

A trial court has broad authority to determine the amount of reasonable attorneys' fees. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.83. The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1095. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. *Id.* The reasonable hourly rate is that prevailing in the community for similar work. *Id.* The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. *Id.* at 1096.

The Court has reviewed the stated hours and the nature of the legal work reflected in the proffered billing statements, considering, among other things, the work described as well as the particular information provided by all parties as to the nature and necessity of such work. The Court has considered the hourly rates by timekeeper for such work and the number of hours reasonably expended by such timekeepers. The Court has also otherwise considered the hours sought and charges therefor in view of all of the relevant factors, as noted above. The Court finds the 49.4 hours billed and the total base fees of \$20,441.50 to be eminently reasonable and necessary to the conduct of the litigation. The Court further finds that the lodestar multiplier of 1.5 is just and appropriate in view of all of the relevant factors. \$20,441.50 times 1.5 equals \$30,662.25.

The Court has considered and rejects Defendant's contention that the motion is untimely. Other than a reduction from the "anticipated" fees to respond to any opposition (down to the actual incurred amounts shown in the reply papers),* the Court has considered and rejects Defendant's contentions that any further reductions ought to be made to the claimed attorneys' fees.

*Despite such reduction down to \$2,205.00, after application of the lodestar multiplier of 1.5, the subtotal for that portion of the awarded fees is \$3,307.50. \$3,307.50 plus 30,662.25 totals \$33,969.75.

Costs

The Court finds that the claimed costs in the amount of \$1,119.37 are recoverable and were necessary to the conduct of the litigation. See Memorandum of Costs filed October 27, 2025 (\$1042.87); see also Supp. Kornely Decl., ¶16 (\$76.50).

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.

2. Plaintiffs are awarded and shall recover from Defendant attorneys' fees in the sum of **\$33,969.75.**
3. Plaintiffs are awarded and shall recover from Defendant costs of suit in the sum of **\$1,119.37.**
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

7. 9:00 AM CASE NUMBER: C24-02121
CASE NAME: SILVINO RAMIREZ VS. ANSELMO OCAMPO
***HEARING ON MINOR'S COMPROMISE RE: MYLENE RAMIREZ**
FILED BY: RAMIREZ, SILVINO
TENTATIVE RULING:

Petitioner Silvino Ramirez, the duly appointed guardian ad litem herein, filed two separate petitions for approval of compromise of minor's claims on December 8, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein relating to the minor claimants Mylene Ramirez and Melanie Ramirez. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on April 27, 2026.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and supporting declarations. The Court finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed orders lodged with the moving papers.

8. 9:00 AM CASE NUMBER: C24-02121
CASE NAME: SILVINO RAMIREZ VS. ANSELMO OCAMPO
***HEARING ON MINOR'S COMPROMISE RE: MELANIE RAMIREZ**
FILED BY: RAMIREZ, SILVINO
TENTATIVE RULING:

See LINE 7 above.

9. 9:00 AM CASE NUMBER: C24-03520
CASE NAME: MARNA PAINTSIL ANNING VS. WILDWOOD AT VILLAGE PARK OWNERS' ASSOCIATION
***HEARING ON MOTION IN RE: CONTINUED FROM MARCH 30, 2026**
FILED BY:
TENTATIVE RULING:

Defendant Wildwood at Village Park Owners' Association ("Defendant") filed a Motion for Reasonable Attorneys' Fees and Costs on November 14, 2025 (the "Motion for Fees and Costs"). The Motion for Fees and Costs was set for hearing on March 30, 2025. The motion is opposed.